

JUDGMENT SHEET
IN THE LAHORE HIGH COURT,
MULTAN BENCH, MULTAN
JUDICIAL DEPARTMENT

Civil Revision No. 1058-D of 2021

Muhammad Aslam and Others

Versus

Mst. Shahzia Talat and 3 Others

JUDGMENT

<i>Date of Hearing</i>	02.02.2026
<i>Revision-Petitioner by</i>	<i>Mr. Muhammad Rizwan Abdullah, learned Advocate.</i>
<i>Respondents No. 1 to 4 by</i>	<i>Mr. Muhammad Rafique Khan, learned Advocate.</i>

Sultan Tanvir Ahmad J:- Through the instant civil revision, the petitioners have questioned the legality of order and decree dated 31.03.2021 passed by learned Appellate Court as well as judgment and decree dated 27.11.2020 passed by learned Civil Judge 1st Class, Commercial / Overseas Court, Multan.

2. The epitome of the controversy is that property measuring about 120-kanals, detailed in the suit (the ‘**Suit Property**’), was owned by Muhammad Afzal-deceased, which was allegedly transferred to Muhammad Aslam (now represented through his LRs) and Muhammad Akram (the ‘**Petitioners**’) through oral gift mutation No. 2661 dated 25.05.2002 (the ‘**Mutation**’). This was challenged in suit dated 27.06.2016 (the ‘**Suit**’) by Mst. Shazia Tallat, Mst. Hakim Mai, Mst. Nadia Tallat and Muhammad Arshad (the ‘**Respondents**’) claiming to be daughters and son of Muhammad Afzal-deceased from his wedlock with Mst. Ameer Bibi. The Respondents alleged that the Mutation,

depriving them from their legal rights of inheritance, is the result of fraud. The Petitioners are admittedly legal heirs of Muhammad Afzal-*deceased* from his first marriage with Mst. Ghulam Sughran. They have defended the Mutation by asserting that Muhammad Afzal-*deceased* out of love, affection and for rendered services, with his free choice, made a gift of the Suit Property to the revision-petitioners, who are in lawful possession of the same.

3. The Mutation is part of the record as Exh.D1 and the family lineage chart is given at its back. The names of the Respondents and Mst. Ameer Bibi are not reflected therein. The *factum* of the second marriage of Muhammad Afzal-*deceased* with Mst. Ameer Bibi as well as the Respondents being their daughters and son, can hardly be disputed and in fact, it is admitted by DW-2 (Muhammad Iqbal), a close relative of the Petitioners. The revenue officer (*naib-tehsildar*), who appeared as DW-5, deposed that the said marriage was not disclosed to him. He categorically stated that no verification was ever carried out by him regarding the said marriage or the Respondents' status as legal heirs. Likewise, Muhammad Ali, *patwari* (DW-4), denied having any knowledge of the aforesaid facts. He further admitted that contrary to the requirement of Section 42(7) of the Land Revenue Act, 1967, the identification was conducted through the real cousins of the Petitioners. No plausible explanation has been offered for the failure to obtain identification from any independent person, respectable of the village or from the *Lumberdar*.

4. The learned counsel for the Petitioners has tried to justify oral gift on the basis of averment made in the written statement that the gift was made due to love, affection and service of the Petitioners to the Muhammad Afzal-*deceased*. This stood negated by the Petitioners' own evidence.

Muhammad Iqbal (DW-2) deposed that Muhammad Afzal-*deceased* used to live with both wives. He denied for lack of knowledge that Muhammad Afzal-*deceased* was seriously ill in the year 2001. This witness, as a matter of fact, deposed that the Petitioners were angry with their father due to his second marriage. It is admitted that possession is with the Petitioners prior to the Mutation and not as a result of the alleged gift.

5. In addition to the ingredients of gift, the Courts can also examine the reasons and justification for giving such a gift so that no injustice is caused to those who otherwise are entitled to their share in estate of a deceased. The Honourable Supreme Court of Pakistan in case titled “Faqir Ali and Others Versus Sakina Bibi and Others” (PLD 2022 Supreme Court 85), in this regard, has observed as under:-

“8. *Although stricto sensu, it is not necessary for a donor to furnish reasons for making a gift yet no gift in the ordinary course of human conduct can be made without reason or justification be it natural love and affection for one or more of his children who may have taken care of the donee in his old age and thus furnished a valid basis and justification for the donor to reward such effort on the part of the donee by way of making a gift in his/her favour. In the case of Barkat Ali v. Muhammad Ismail (2002 SCMR 1938) this Court has already taken notice of the fact that in the wake of frivolous gifts generally made to deprive female members of the family from benefit of inheritance available to them under Sharia as well as the law, the Courts are not divested of the powers to scrutinize the reasons and justification for a gift so that no injustice is done to a legal heir who otherwise stands to inherit from the estate of a deceased predecessor or relative and that the course of inheritance is not bypassed or artificially blocked. In the present case, no*

reason is available on the basis of which the alleged gift appears to have been made...”

6. Recently, in case titled “Hidayat Khan and Others Versus Mst. Nasreen and Others” (PLD 2025 Supreme Court 502) it has been emphasized that in the case(s) of gift, the donee is required to prove the transaction and reason for exclusion of other legal heir from estate, with cogency and through confidence inspiring evidence.

7. Submissions are also made with respect to the delay in raising claim, however, mere afflux of time cannot extinguish the right of inheritance that too when fraud is evident and record strongly indicates wrong doing. Needless to reiterate that no justification is available for not showing the Respondents in the lineage table or concealing the marriage with Mst. Ameer Bibi. There are numerous judgments on the subject to rely upon including the aforementioned Supreme Court’s judgments.

8. The reference to possession of the revision-petitioners has no significance in view of factual conclusions of the learned two Courts below and law authoritatively settled by now that possession of one legal heir, to exclusion of others, is to be treated as constructive on behalf of all entitled to share in estate, unless otherwise proved.

9. For the reasons recorded above, I do not find any merit in this civil revision. It is accordingly **dismissed**, with no order as to costs.

Sultan Tanvir Ahmad
Judge

Approved for reporting
Announced on 16.02.2026.

Judge